

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Toma	Team: Squad #01	CCRB Case #: 202401891	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 11/15/2023 7:00 PM, Wednesday, 11/15/2023 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/15/2025	Precinct: 67
Date/Time CV Reported Fri, 02/23/2024 10:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 02/23/2024 10:44 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mehmet Kanbur	03730	937826	067 PCT
2. PO Salvatore Mattaliano	20729	963144	067 PCT
3. PO Roxanna Gonzalez	17480	975500	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Antuanet Bautista	10363	968269	067 PCT
2. PO Jose Henriquez	25202	963069	067 PCT
3. PO Fatema Dupree	03517	975447	067 PCT
4. LT Jerry Sukhnandan	00000	940778	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Mehmet Kanbur	Abuse: Sergeant Mehmet Kanbur entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . SGT Mehmet Kanbur	Abuse: Sergeant Mehmet Kanbur searched § 87(2)(b) in Brooklyn.	B . Substantiated
C . SGT Mehmet Kanbur	Abuse: Sergeant Mehmet Kanbur entered § 87(2)(b) in Brooklyn.	C . Within NYPD Guidelines
D . SGT Mehmet Kanbur	Abuse: Sergeant Mehmet Kanbur searched § 87(2)(b) in Brooklyn.	D . Within NYPD Guidelines
E . SGT Mehmet Kanbur	Abuse: Sergeant Mehmet Kanbur seized § 87(2)(b) property.	E . Within NYPD Guidelines
F . PO Salvatore Mattaliano	Abuse: Police Officer Salvatore Mattaliano entered § 87(2)(b) in Brooklyn.	F . Within NYPD Guidelines
G . PO Roxanna Gonzalez	Abuse: Police Officer Roxanna Gonzalez entered § 87(2)(b) in Brooklyn.	G . Within NYPD Guidelines
H . PO Salvatore Mattaliano	Abuse: Police Officer Salvatore Mattaliano searched § 87(2)(b) in Brooklyn.	H . Within NYPD Guidelines
I . PO Salvatore Mattaliano	Abuse: Police Officer Salvatore Mattaliano seized § 87(2)(b) property.	I . Within NYPD Guidelines

Case Summary

On February 23, 2024, § 87(2)(b) filed this complaint with the CCRB via the online website.

On November 15, 2023, at approximately 7:00 PM, Sgt. Mehmet Kanbur, from the 67th Precinct, entered and searched § 87(2)(b) in Brooklyn (**Allegations A and B: Abuse of Authority-Substantiated**). Sgt. Kanbur entered and searched § 87(2)(b) (**Allegations C and D: Abuse of Authority-Within NYPD Guidelines**). Sgt. Kanbur seized § 87(2)(b) property (**Allegation E: Abuse of Authority- Within NYPD Guidelines**).

On November 15, 2023, at approximately 10:00 PM, PO Salvatore Mattaliano and PO Roxanna Gonzalez, from the 67th Precinct, entered § 87(2)(b) (**Allegations F and G: Abuse of Authority- Within NYPD Guidelines**). PO Mattaliano searched § 87(2)(b) (**Allegation H: Abuse of Authority- Within NYPD Guidelines**). PO Mattaliano seized § 87(2)(b) property (**Allegation I: Abuse of Authority- Within NYPD Guidelines**). § 87(2)(b) was arrested for menacing and criminal possession of a weapon as a result of the incident (**Board Review 01**).

Eight body-worn camera (BWC) videos were received for this incident (**Board Reviews 02-08**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Mehmet Kanbur entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Mehmet Kanbur searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated that he lives in the § 87(2)(b) of § 87(2)(b) with his 24-year-old son, § 87(2)(b) and his 14-year-old son, § 87(2)(b) (**Board Review 09**). § 87(2)(b) rents the rest of his house to tenants. § 87(2)(b) got into an argument with § 87(2)(b) inside their § 87(2)(b) apartment. § 87(2)(b) subsequently opened their § 87(2)(b) apartment door, pointed a three-foot-long broom out the door, and told him to leave. § 87(2)(b) left the apartment and 10 minutes later PO Mattaliano and PO Gonzalez knocked on the door. They explained that they received a 911 call from § 87(2)(b) § 87(2)(b) tenant, § 87(2)(b) regarding child abuse of his 14-year-old son § 87(2)(b). The officers called § 87(2)(b) over to the door, asked him if § 87(2)(b) hit him, and visually examined him for injuries. They determined that he had no injuries and left. Around five to 10 minutes later, Sgt. Kanbur knocked on the door. § 87(2)(b) opened it and Sgt. Kanbur told § 87(2)(b) he was there to interview him and barged into the apartment. § 87(2)(b) did not tell Sgt. Kanbur that he could or could not enter as he wanted to cooperate. Sgt. Kanbur told him that he saw a video of him swinging a broom at § 87(2)(b) and asked him where the broom was. § 87(2)(b) said, “are you talking about this?” and picked up the broom he had earlier pointed out the door. After examining the broom, Sgt. Kanbur arrested § 87(2)(b) for menacing.

§ 87(2)(b)

§ 87(2)(b) The event went over the radio as an assault in progress reporting a domestic violence incident with a father hitting his child (**Board Review 23**). It states § 87(2)(b) caller reported that § 87(2)(b)

PO Mattaliano’s body-worn camera footage, at 11:55, captures PO Mattaliano, the first responding

officer, knock on § 87(2)(b) apartment door (**Board Review 04**). At 12:07, § 87(2)(b) opens the door and PO Mattaliano asks what happened. At 13:19, § 87(2)(b) says he picked up a stick, threw § 87(2)(b) phone outside, and § 87(2)(b) told him he was going to call the police. At 13:52, PO Mattaliano asks if § 87(2)(b) is home and asks to see him. At 14:40, § 87(2)(b) approaches the door. PO Mattaliano discloses that there were allegations made that § 87(2)(b) hurt § 87(2)(b). § 87(2)(b) denies being hurt. At 14:59, PO Mattaliano asks to check § 87(2)(b) body for injuries. § 87(2)(b) shows PO Mattaliano his arms, stomach, and back. At 17:12, PO Mattaliano tells Sgt. Kanbur that § 87(2)(b) tenants heard a domestic incident downstairs. PO Mattaliano tells Sgt. Kanbur that § 87(2)(b) alleged that § 87(2)(b) hit § 87(2)(b) who is 14 years old. PO Mattaliano confirms that he asked § 87(2)(b) if he was hit and that he checked his body and he had no injuries. At 32:20, § 87(2)(b) and responding officers are standing outside at the rear of § 87(2)(b) house near where his § 87(2)(b) apartment entrance is. At 32:32, Sgt. Kanbur asks § 87(2)(b) “where is that thing, downstairs?” Sgt. Kanbur says, “let me go downstairs, come with me,” walks down the steps to the entrance of § 87(2)(b) apartment, and § 87(2)(b) follows behind. At 32:45, § 87(2)(b) tells Sgt. Kanbur, “I got the keys, but can I ask what’s the reason.” Sgt. Kanbur says he wants to see the setting. § 87(2)(b) uses the keys to unlock his door. Sgt. Kanbur walks inside, and § 87(2)(b) follows behind and describes the dispute and where it occurred inside the apartment. At 34:51, Sgt. Kanbur asks § 87(2)(b) what happened with the broom and if he grabbed it. § 87(2)(b) says he grabbed the broom and told § 87(2)(b) to get out. At 35:25, PO Mattaliano asks § 87(2)(b) what broom it was, and § 87(2)(b) points towards his apartment door entrance and says, “the one that’s bent.” At 35:37, PO Mattaliano moves § 87(2)(b) door and asks, “is it this thing?” § 87(2)(b) says, “it might be that one or the other one.” PO Mattaliano walks out of the apartment and Sgt. Kanbur tells him to “grab the broom.” At 36:10, PO Mattaliano walks out of the apartment with two brooms.

Sgt. Kanbur stated that he responded to a family assault (**Board Review 10**). § 87(2)(b) explained that he got into a dispute with his 24-year-old son § 87(2)(b). Sgt. Kanbur interviewed § 87(2)(b) who explained that an argument broke out, § 87(2)(b) grabbed a broomstick, bent and damaged it, and told § 87(2)(b) “get the fuck out of my house.” § 87(2)(b) also said that § 87(2)(b) was about to hit him, but § 87(2)(b) held § 87(2)(b) back. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b) Sgt. Kanbur spoke to § 87(2)(b) who denied that his father beat him. Sgt. Kanbur asked § 87(2)(b) what happened and told him he wanted to see the setting where the incident took place, requesting consent to enter his § 87(2)(b) apartment. Sgt. Kanbur could have placed § 87(2)(b) under arrest based on the information he already had but he wanted to get a better picture of the incident before making a final decision. Sgt. Kanbur also wanted to confirm that § 87(2)(b) lived with § 87(2)(b) instead of just taking his word for it. § 87(2)(b) opened the door with his keys and let Sgt. Kanbur into his apartment. § 87(2)(b) did not tell Sgt. Kanbur that he did not want him to enter his apartment. Sgt. Kanbur believed § 87(2)(b) provided consent by opening the door for him. Sgt. Kanbur did not recall if § 87(2)(b) gave him any verbal consent. If an officer requests consent to enter a civilian’s apartment, officers do not need to inform civilians that they do not need to let them in. After the investigation, Sgt. Kanbur determined that § 87(2)(b) menaced § 87(2)(b) with a broomstick as the broomstick was bent and damaged as § 87(2)(b) had described. § 87(2)(b) was placed under arrest for menacing and criminal possession of a

weapon.

Per Payton v. New York, 445 U.S. 573, absent a warrant, police officers cannot enter and/or search a premises unless they have consent, exigent, or emergency circumstances (**Board Review 13**). Per People v. Doll, 21 N.Y.3d 665, warrantless entries are permissible under the emergency doctrine provided: (1) the police have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life, grounded in empirical facts; (2) the search must not be primarily motivated by an intent to arrest and seize evidence; and (3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched (**Board Review 14**).

Per New York City (NYC) Administrative Code 14-173 (a)(1), when obtaining consent to search, officers should (1) articulate using plain and simple language delivered in a non-threatening manner, that the person being asked to consent to a search voluntarily, knowingly, and intelligently consent to such search, and explain that such search will not be conducted if such person refuses to provide consent (**Board Review 15**).

Per Payton v. New York, 445 U.S. 573, officers can enter and/or search premises with consent but per New York City (NYC) Administrative Code 14-173 (a)(1), officers must clearly articulate their request for consent, the consent must be voluntary, and officers must tell the person that they may refuse to provide consent. BWC showed that while § 87(2)(b) unlocked the door for Sgt. Kanbur, Sgt. Kanbur did not explicitly ask for permission to enter or tell § 87(2)(b) that he could refuse to provide consent. Sgt. Kanbur's words, "where is that thing, downstairs?", "let me go downstairs, come with me," and telling § 87(2)(b) that he wanted to see the setting did not suggest that § 87(2)(b) had a choice. § 87(2)(g)

§ 87(2)(b) Per BWC and Sgt. Kanbur's statement, he entered to see the setting and obtain more information but acknowledged that he already had enough to arrest § 87(2)(b) for menacing and only made the arrest after finding evidence of the bent broomstick inside the apartment. § 87(2)(g)

it is recommended that **Allegations A and B** be closed as **Substantiated**.

Allegation (C) Abuse of Authority: Sergeant Mehmet Kanbur entered § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Sergeant Mehmet Kanbur searched § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Sergeant Mehmet Kanbur seized § 87(2)(b) property.

§ 87(2)(b) stated that he identified himself as a former member of service with the Drug Enforcement Administration (DEA) and Department of Corrections (DOC) (**Board Review 09**). He explained that he was currently working for § 87(2)(b) Sgt. Kanbur asked where his firearm was, and § 87(2)(b) told him it was in his apartment in a file cabinet

locked up. § 87(2)(b) had two firearms in the file cabinet, one for his job with § 87(2)(b) and the other from him being retired DEA, but he did not state this to the officers at the time. Sgt. Kanbur told him the officers needed to get his firearm. § 87(2)(b) said he would give the officers his keys to the file cabinet and an officer retrieved them from one of his pockets. § 87(2)(b) asked Sgt. Kanbur if he could witness him search the file cabinet and Sgt. Kanbur said no. § 87(2)(b) said “listen, I’m denying any consent to search.” Sgt. Kanbur told the officers to take § 87(2)(b) to the stationhouse. As the officers walked § 87(2)(b) to their vehicle, he saw Sgt. Kanbur walk towards his apartment but did not see him enter. While in the cells, Sgt. Kanbur told § 87(2)(b) that he went into his file cabinet. § 87(2)(b) asked Sgt. Kanbur why he searched his file cabinet, even though he did not give him consent. Sgt. Kanbur told § 87(2)(b) that § 87(2)(b) gave him consent to search.

§ 87(2)(b) stated that after § 87(2)(b) was arrested, PO Mattaliano and Sgt. Kanbur entered the § 87(2)(b) apartment through the open door (**Board Review 17**). There was no one else inside the apartment at the time. § 87(2)(b) followed behind them and the officers did not say anything. § 87(2)(b) never told the officers that they could enter the apartment. Sgt. Kanbur used § 87(2)(b) keys to open the file cabinet. Sgt. Kanbur did not ask § 87(2)(b) if he could open or search the file cabinet. PO Mattaliano stood there the whole time and waited for Sgt. Kanbur to be done. Sgt. Kanbur took one firearm from the file cabinet.

PO Antuanet Bautista’s body-worn camera footage, at 28:05, captures her enter the § 87(2)(b) apartment after § 87(2)(b) is placed under arrest outside (**Board Review 08**). She hands § 87(2)(b) property and tells him that § 87(2)(b) needs his department phone. At 28:17, PO Bautista says, “hey question, does your father keep his firearm secure here?” § 87(2)(b) says “yeah.” PO Bautista asks “where” and § 87(2)(b) motions to his left and says, “in there, it’s locked up.” PO Bautista asks § 87(2)(b) what he means, and § 87(2)(b) says, “it’s locked up.” PO Bautista walks over to the file cabinet and says, “locked up in here?” and § 87(2)(b) says “yeah.” PO Bautista says, “Can I- eh never mind. Here, right? First drawer?” and § 87(2)(b) says yes. PO Bautista walks out of the apartment. At 29:45, PO Jose Henriquez and PO Fatema Dupree walk § 87(2)(b) towards the front of the house. At 29:49, Sgt. Kanbur, PO Bautista, and § 87(2)(b) are standing on the side of the house closer to the rear. Sgt. Kanbur says, “go find out exactly where the firearm is,” and PO Bautista says, “it’s in the first drawer.” § 87(2)(b) who is standing at the front of the house, says “no, hold up listen, let me show you where it’s at.” § 87(2)(b) walks towards the § 87(2)(b) door with officers, including Sgt. Kanbur. PO Bautista walks to the front of the house and tells § 87(2)(b) “everything will be secured sir.” § 87(2)(b) asks, “how could you search my house without my consent?” and says he wants to witness the search. PO Henriquez tells § 87(2)(b) that everything is being recorded and § 87(2)(b) says, “no, no but I want to be there, I’m not giving you consent to search my house, I want to be there.”

Sgt. Kanbur’s body-worn camera footage, at 22:40, captures § 87(2)(b) and the officers standing outside behind the house after they exited § 87(2)(b) apartment with the brooms (**Board Review 05**). Sgt. Kanbur tells § 87(2)(b) he is going to be placed under arrest because he admitted that he grabbed the broom and pointed it for § 87(2)(b) to get out. At 23:15, § 87(2)(b) tells Sgt. Kanbur he is a member of service and that he works for § 87(2)(b). At 26:20, PO Bautista hands Sgt. Kanbur § 87(2)(b) work ID. At 27:40, Sgt. Kanbur asks § 87(2)(b) if he has a firearm, and he says yes but that it is secured. Sgt. Kanbur texts something on his phone and then asks § 87(2)(b) where the firearm is, and he says it is in the metal file cabinet. At 29:57, Sgt. Kanbur says, “go find out exactly where this firearm is.” PO Bautista says, “it’s in the first drawer.” § 87(2)(b)

§ 87(2)(b) yells from a distance, “no hold up, hold up, let me show you,” and Sgt. Kanbur says, “I got it,” and turns the corner toward the rear of the house. At 30:20, Sgt. Kanbur walks into § 87(2)(b) apartment through the door that is wide open. At 31:01, § 87(2)(b) is standing next to PO Mattaliano inside the apartment. At 31:20, Sgt. Kanbur asks, “where is the firearm again, which drawer he said,” and PO Mattaliano says, “he said something about the metal file cabinet.” At 31:29, Sgt. Kanbur opens the top drawer, which is unlocked, and says, “right here.” Neither Sgt. Kanbur nor PO Mattaliano ask § 87(2)(b) for permission to search the file cabinet. At 34:15, Sgt. Kanbur is speaking on the phone. He says, “it’s in the file cabinet,” “I mean he said it was in the file cabinet, so I opened it and it’s right there.” Sgt. Kanbur asks, “does he want to come here, or I am going to bring it.” At 35:00, Sgt. Kanbur says he is waiting for a call back. At 35:40, Sgt. Kanbur receives a call back. At 36:05, Sgt. Kanbur removes the gun from the drawer.

PO Mattaliano’s body-worn camera footage, at 45:27, captures Sgt. Kanbur open the top drawer, lift out a black handgun and return it to the drawer (**Board Review 04**). At 50:01, after taking a call on his cell phone, Sgt. Kanbur opens the top drawer of the metal file cabinet and removes the firearm.

Sgt. Kanbur stated that § 87(2)(b) informed him that he worked for § 87(2)(b) and showed him his § 87(2)(b) employee ID (**Board Review 10**). Whenever a member of service is involved, officers need to find out if they have a firearm. Sgt. Kanbur asked § 87(2)(b) if he had a firearm as his ID looked like a law enforcement ID and he said yes. Sgt. Kanbur asked where it was located, and § 87(2)(b) said it was in the house in a metal file cabinet. No officer provided Sgt. Kanbur with information about where the firearm was located, and he did not have any other information about how it was secured besides it being in the file cabinet. From Sgt. Kanbur’s 19 years of experience, he knew that when it came to domestic violence jobs, any firearms in the house must be safeguarded until the whole issue is resolved, and the DA releases the firearm back due to the sensitivity of domestic violence jobs to prevent further escalation. Confiscating a firearm when there is a domestic violence job is usually done immediately, and no warrant is required when the civilian is not being charged with it and the weapon is simply being safeguarded to ensure the safety of everyone. If the firearm was not safeguarded, and § 87(2)(b) was released the next day, he would have access to the firearm. Sgt. Kanbur took a picture of § 87(2)(b) ID on his phone and sent it to Lt. Jerry Sukhnandan to show him who § 87(2)(b) was and inform him about what was going on. Sgt. Kanbur also texted Lt. Sukhnandan about the existence of the firearm and Lt. Sukhnandan told him to bring the firearm in. Sgt. Kanbur believed that § 87(2)(b) telling him where the firearm was, provided consent for Sgt. Kanbur to enter the apartment to take the firearm and safeguard it. Sgt. Kanbur did not disclose that he was going to take the firearm, but he believed it was § 87(2)(b) understanding of standard procedure as he worked § 87(2)(b) § 87(2)(b) never told Sgt. Kanbur that he did not want him to enter his apartment. § 87(2)(b) told Sgt. Kanbur he wanted to go with him into the home, but § 87(2)(b) was already handcuffed so Sgt. Kanbur chose to enter § 87(2)(b) apartment with § 87(2)(b) and other officers. He entered with the sole purpose of removing the firearm from the file cabinet to safeguard it as he planned to do so on his own but also because Lt. Sukhnandan told him to do so. Sgt. Kanbur opened the unlocked file cabinet and removed the firearm. Sgt. Kanbur stated he did not know the exact laws for the § 87(2)(b) but in general, firearms are supposed to be safeguarded in a safe. The firearm was unsafe to leave unattended as it was not in a safe and § 87(2)(b) sons could get access to the firearms as they all lived in the same apartment.

The related property voucher prepared by PO Mattaliano lists two pistols vouchered for safekeeping (**Board Review 24**).

People v. Doll, 21 N.Y.3d 665, mentioned in more detail above in Allegation A, provides the parameters for a warrantless entry pursuant to emergency circumstances (**Board Review 14**).

Per People v. McBride, 14 N.Y.3d 440, exigent circumstances may justify a warrantless entry into a home (**Board Review 27**). It established six factors to determine exigency: “(1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause ... to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.” The court further opined that the list was not exhaustive, and that the ultimate inquiry should assess whether in all of the facts of a case, there was an urgent need that justified a warrantless entry.

Per Patrol Guide Procedure 208-36, all members of the service are reminded that their primary responsibility is to ensure the immediate and future safety of all parties involved in domestic violence incidents (**Board Review 18**). When officers respond to a domestic incident, they must question the persons present about the access of firearms in the household. Officers must seize the firearms and any licenses or permits if the incident involves physical force or the threat of physical force. Additionally, when an officer reasonably believes that the presence of firearms at a location creates imminent risk of physical injury, the officer must seize the firearms. They are to voucher legally possessed firearms which are voluntarily surrendered by participants in domestic incidents.

Per Patrol Guide Procedure 212-118, officers should seize a firearm license and all firearms if the licensee holder is arrested, regardless of charge, if the incident involves physical force or the threat of physical force, or in any other situation that may affect public safety as public safety is the overriding concern when considering the removal of a licensed firearm (**Board Review 25**). Incidents involving a holder of a firearm license that require an investigation be conducted include violating terms, conditions or rules related to the license, domestic incidents coming to the attention of the department, ongoing or recurring disputes that have potential for violence or allegations of threatening statements, and an arrest. The Department has broad authority to remove firearms and temporarily suspend a license/permit during the investigation of an incident as outlined above. Prior conferral with the License Division, Incident Section is not required in order to remove firearms. In the case of an arrest, or any assessment of imminent danger, if the firearm cannot be obtained by consent, and there is probable cause to believe that they are in a particular location, a search warrant will be obtained prior to seizure of the firearms, unless exigent circumstances justify an immediate seizure.

Per NY Penal Law § 265.45, no person who owns a firearm and resides with an individual who is under eighteen shall store or otherwise leave such firearm out of his or her immediate possession or control without having first securely locked such firearm in an appropriate safe storage depository or rendered it incapable of being fired by use of a gun locking device. A “safe storage depository” is defined as “a safe or other secure container which, when locked, is incapable of being opened without the key, keypad, combination or other unlocking mechanism” (**Board Review 26**).

Per body-worn camera footage, after § 87(2)(b) was arrested § 87(2)(g) he informed Sgt. Kanbur that he had a firearm secured in a file cabinet, not locked in a safe. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegations C, D and E be closed as Within NYPD Guidelines.

Allegation (F) Abuse of Authority: Police Officer Salvatore Mattaliano entered § 87(2)(b) in Brooklyn.

Allegation (G) Abuse of Authority: Police Officer Roxanna Gonzalez entered § 87(2)(b) in Brooklyn.

Allegation (H) Abuse of Authority: Police Officer Salvatore Mattaliano searched § 87(2)(b) in Brooklyn.

Allegation (I) Abuse of Authority: Police Officer Salvatore Mattaliano seized § 87(2)(b) property.

§ 87(2)(b) stated that a female officer spoke to him at the stationhouse and told him that the officers had one firearm and § 87(2)(b) told her there was another one (Board Review 09).

§ 87(2)(b) stated that he and § 87(2)(b) were at home between 9:00 PM and 10:00 PM on the same evening (Board Review 17). § 87(2)(b) heard speaking, so he went to the living room to see what was going on and saw PO Mattaliano and Sgt. Kanbur with § 87(2)(b). Sgt. Kanbur approached the unlocked file cabinet, opened it, looked through it, and explained that he returned for a second firearm. Sgt. Kanbur took a second firearm from the file cabinet and the officers left.

PO Mattaliano's body-worn camera footage, at 05:05 (10:06 pm), captures him outside near the back entrance to § 87(2)(b) apartment (Board Review 06). PO Mattaliano tells § 87(2)(b) that the officers are going to grab what they need to grab, and then they are going to leave. At 05:15, § 87(2)(b) walks downstairs and unlocks the apartment door. At 05:50, § 87(2)(b) enters the apartment, and PO Mattaliano follows. At 06:00, PO Mattaliano says, "this cabinet is what I was told" and opens the top drawer of the cabinet. At 06:27, PO Mattaliano grabs a firearm, which is in between paperwork, and says, "this is the second gun that we are going to secure off the gentleman since he is a member of law enforcement, he's obviously okay to carry it, we just need to voucher it in for safe keeping at the precinct due to the circumstances until everything is resolved." At 06:54, PO Mattaliano closes the file cabinet and leaves the location with PO Gonzalez. Sgt. Kanbur is not present.

PO Mattaliano stated that Sgt. Kanbur directed him to go back to § 87(2)(b) apartment to secure a second firearm (Board Review 11). PO Mattaliano and PO Gonzalez returned to § 87(2)(b) apartment. PO Mattaliano called § 87(2)(b) and told him that the officers had to retrieve a second firearm and asked if he could let them inside. § 87(2)(b) agreed and let them inside the apartment. Exigent circumstances existed as there was an unsecured firearm still inside the apartment. Like the first firearm, this second firearm, had to be seized for procedural reasons as there was a firearm that was not locked up in a house with a minor. PO Mattaliano seized the second firearm from the file cabinet. PO Mattaliano did not recall how he knew that the second firearm would be in the same location as the first.

PO Gonzalez stated that at the stationhouse, § 87(2)(b) told her that he had a firearm inside his house and he needed to call someone to pick it up (**Board Review 19**). § 87(2)(b) disclosed that the firearm would be in the unlocked drawer of the file cabinet. PO Gonzalez conveyed this information to Sgt. Kanbur, and he told her they had to retrieve the firearm to safeguard it. The officers removed the firearm for safety reasons as it was not in a locked box. People v. Doll, 21 N.Y.3d 665 (Board Review 14), People v. McBride, 14 N.Y.3d 440 (Board Review 27), Patrol Guide Procedure 208-36 (Board Review 18), Patrol Guide Procedure 212-118 (Board Review 25), NY Penal Law § 265.45 (Board Review 26), all cited above, set forth the parameters for entry and search under emergency/exigent circumstances, the requirement that firearms be safeguarded when minors live in the home, and the procedure that officers should follow when securing and removing a firearm, including one assigned to a member of service.

Based on the consistency of their statements, § 87(2)(b) informed PO Gonzalez that he had a second firearm at his home. It is undisputed that PO Mattaliano and PO Gonzalez entered the home to seize § 87(2)(b) second firearm. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegations F-I** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 20**).
- Sgt. Kanbur has been a member of service for 19 years and has been a subject in nine other CCRB complaints and 22 other allegations, none of which were substantiated. § 87(2)(g)
- PO Mattaliano has been a member of service for seven years and has been a subject in one other CCRB complaint and two other allegations, neither of which was substantiated. § 87(2)(g)
- PO Gonzalez has been a member of service for one year and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
 - As of March 11, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 21**).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 1

Investigator:	<u>Inv. Stephanie Toma</u> Signature	<u>Inv. Stephanie Toma</u> Print Title & Name	<u>02/05/2025</u> Date
Squad Leader:	<u>Mgr. Joy Almeyda</u> Signature	<u></u> Print Title & Name	<u>02/05/2025</u> Date